M/S. Meenakshi Energy Private Limited vs Central Electricity Regulatory ... on 1 March, 2013

Appellate Tribunal for Electricity
(Appellate Jurisdiction)

IA No. 53 of 2013 in
Appeal No. 16 of 2013

Dated: 1st March, 2013

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

In the matter of
M/s. Meenakshi Energy Private Limited
Meenakshi House, 8-2-418,
Road No.7, Banjara Hills,
Hyderabad - 500 034 ...Appellant(s)

Versus

1. Central Electricity Regulatory Commission
   3rd & 4th Floor, Chanderlok Building
   36, Janpath
   New Delhi - 110 001

2. Southern Regional Load Despatch Centre
   29, Race Course Cross Road
   Bangalore - 560 009

3. Power Systems Operation Corporation Ltd (POSOCO)
   B-9, Qutab Institutional Area
   Katwaria Sarai
   New Delhi - 110 016

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4. Power Grid Corporation of India Limited (PGCIL)
   Saudamini, Plot No.2,

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   Sector - 29, Gurgaon - 122 001

5. Southern Regional Power Committee (SRPC)
   Central Electricity Authority
   No.29, Race Course Cross Road
   Bangalore - 560 009

6. Simhapuri Energy Private Limited
   Madhucon Greenlands,
   6-3-866/2, 3rd Floor Begumpet,
   Hyderabad - 500 016                                    ...Respondents

Counsel for the Appellant(s) :   Mr. Sitesh Mukherjee
                                 Mr. Sakya S. Chaudhuri
                                 Ms. Mandakini Ghosh

Counsel for the Respondent(s): Mr. Nikhil Nayyar for R-1
                               Mr. Pawan Upadhyay,
                               Mr. Jyoti Prasad and
                               Mr. Sarvjit Pratap Singh
                               for R-2 & 3
                               Mr. M.G. Ramachandran
                               Ms. Swapna Seshadri for R-4

                            ORDER
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The above I.A. in Appeal No. 16 of 2013 has been filed by M/s. Meenakshi Energy Private Limited praying for an interim order against the I.A. No. 53 of 2013 in Appeal No. 16 of 2013 impugned order dated 9.10.2012 passed by the Central Electricity Regulatory Commission directing that the tie-line between the power plant of the Appellant and the Respondent no. 6 be kept open.

2. The Appellant and the Respondent no. 6 are the generating companies that have developed power projects which are situated in nearby vicinity. On the advice of the Central Transmission Utility, the Appellant and the Respondent no. 6 have developed a common dedicated transmission system for evacuation of power from the two generating stations to Powergrid's sub-station at Nellore. The transmission system comprises 400 kV Meenakshi - Nellore, Simhapuri - Nellore lines and a line interconnecting Simhapuri Power Plant and Meenakshi Power Plant.

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3. The Appellant filed a petition before the Central Commission for directions to the Southern Regional Load Despatch Centre (SRLDC) and Power Systems Operation Corporation Ltd. respectively to take into account the metering scheme given by Powergrid and to treat the generating stations of the Appellant and the Respondent no. 6 as independent generating stations for scheduling, dispatch and energy accounting purposes.

4. The Central Commission by its impugned order dated 9.10.2012 directed that the generating stations of the Appellant and Respondent no. 6 shall be treated by SRLDC as separate and

independent entities for the purpose of scheduling and despatch, metering and energy I.A. No. 53 of 2013 in Appeal No. 16 of 2013 accounting by opening the inter-connection line between the generating stations and installing separate meters at the inter-connection points at Nellore.

5. The Appellant has sought grant of stay of operation of the impugned order to the extent it is directed that the tie-line connecting the generating stations of the Appellant and the Respondent no. 6 be kept open and to implement the metering arrangement for facilitating independent scheduling, dispatch and energy accounting of the two Power Stations.

6. We have heard the learned counsel for the parties on the above I.A.

7. We are inclined to pass an interim order in the matter as the balance of convenience lies in I.A. No. 53 of 2013 in Appeal No. 16 of 2013 favour of the Appellant as no harm will be caused to the Respondents if the tie-line between the power plants of the Appellant and the Respondent no. 6 is closed and the metering scheme for ensuring separate scheduling and energy accounting for the two power stations is facilitated in the interim period. Accordingly, we pass the following interim order.

(A) The Appellant shall install and maintain the correct Special Energy Meters on Meenaskhi-Nellore, Meenakshi - Simhapuri transmission lines at the Meenakshi end. Similarly, the Respondent no. 6 shall install and maintain the correct Special Energy Meters at Simhapuri end on Simhapuri-Nellore and Simhapuri-

I.A. No. 53 of 2013 in Appeal No. 16 of 2013 Meenakshi transmission lines. These meters shall be jointly tested and sealed by the Appellant and the Respondent no.6. (B) SRLDC/Powergrid shall maintain Special Energy Meters at Nellore end on Nellore- Simhapuri and Nellore-Meenakshi transmission lines.

(C) After installation of the energy meters at the power plant ends, the tie line between Meenakshi and Simhapuri power plants shall be closed.

(D) The metering data at Meenakshi end and Simhapuri end will be jointly taken by the Appellant and the Respondent no. 6 and communicated to SRLDC in the form and periodicity as desired by SRLDC for the purpose of energy accounting.

I.A. No. 53 of 2013 in Appeal No. 16 of 2013 (E) SRLDC will compute the respective injection of Simhapuri power station and Meenakshi power station at Nellore sub- station on pro-rata basis taking into account their combined injection on Meenakshi-Nellore and Simhapuri-Nellore lines at Nellore end and the respective sent out of energy at the bus bars of the power plants computed from the energy meters installed at the two power plants and communicated by the Appellant and the Respondent no. 6. The computed data of energy injection for Simhapuri and Meenakshi power plants shall be utilized by SRLDC for energy accounting.

I.A. No. 53 of 2013 in Appeal No. 16 of 2013 (F) Scheduling, dispatch and energy accounting including UI computation will be carried out for the power plants of separately by the SRLDC.

8. The above interim arrangement will be without prejudice to the respective rights of the parties and subject to the final outcome of the Appeal. With these directions the IA is disposed of.

9. Post the main matter for further hearing on 16th April, 2013. In the meantime, pleadings be completed.

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  (Rakesh Nath)          (Justice M. Karpaga Vinayagam)
Technical Member                     Chairperson

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REPORTABLE/NON-REPORTABLE
Vs
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